

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3007

By: Kendrix of the House

and

Bergstrom of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to environment and natural resources;
12 amending 27A O.S. 2021, Section 2-2-201, as amended
13 by Section 1, Chapter 69, O.S.L. 2023 (27A O.S. Supp.
14 2025, Section 2-2-201), which relates to advisory
15 councils; extending sunset date; providing an
16 effective date; and declaring an emergency.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-2-201, as
19 amended by Section 1, Chapter 69, O.S.L. 2023 (27A O.S. Supp. 2025,
20 Section 2-2-201), is amended to read as follows:

21 Section 2-2-201. A. There are hereby re-created until July 1,
22 ~~2026~~ 2031, pursuant to the provisions of the Oklahoma Sunset Law:

- 23 1. The Water Quality Management Advisory Council;
24 2. The Hazardous Waste Management Advisory Council;

1 3. The Solid Waste Management Advisory Council; and

2 4. The Radiation Management Advisory Council.

3 B. 1. Except as provided for in paragraph 2 of this
4 subsection, each Council created pursuant to subsection A of this
5 section shall consist of nine (9) members. Three members shall be
6 appointed by the Governor, three members shall be appointed by the
7 Speaker of the House of Representatives and three members shall be
8 appointed by the President Pro Tempore of the Senate. Appointments
9 shall be for three-year terms. Members of the Advisory Councils
10 shall serve at the pleasure of and may be removed from office by the
11 appointing authority. Members shall continue to serve until their
12 successors are appointed. Any vacancy shall be filled in the same
13 manner as the original appointments. Five members shall constitute
14 a quorum.

15 2. a. The Solid Waste Management Advisory Council shall
16 consist of ten (10) members. Four members shall be
17 appointed by the Governor, three members shall be
18 appointed by the Speaker of the House of
19 Representatives and three members shall be appointed
20 by the President Pro Tempore of the Senate.
21 Appointments shall be for three-year terms. Members
22 of the Solid Waste Management Advisory Council shall
23 serve at the pleasure of and may be removed from
24 office by the appointing authority. Members shall

1 continue to serve until their successors are
2 appointed. Any vacancy shall be filled in the same
3 manner as the original appointments. Six members
4 shall constitute a quorum.

5 b. The Water Quality Management Advisory Council shall
6 consist of twelve (12) members. Four members shall be
7 appointed by the Governor, four members shall be
8 appointed by the President Pro Tempore of the Senate,
9 and four members shall be appointed by the Speaker of
10 the House of Representatives. Appointments shall be
11 for three-year terms. Members shall serve at the
12 pleasure of and may be removed by the appointing
13 authority. Members may be eligible for reappointment
14 and shall continue to serve until their successors are
15 appointed. Vacancies shall be filled in the same
16 manner as their original appointments. Seven members
17 shall constitute a quorum.

18 3. Each Council shall elect a chair and a vice-chair from among
19 its members. Each Council shall meet as required for rule
20 development, review and recommendation and for such other purposes
21 specified by law. Special meetings may be called by the chair or by
22 the concurrence of any three members.
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1 C. 1. All members of the Water Quality Management Advisory
2 Council shall be knowledgeable of water quality and of the
3 environment. The Council shall be composed as follows:

4 a. the Governor shall appoint four members as follows:

- 5 (1) one member representing the field of engineering,
- 6 (2) one member representing a statewide nonprofit
7 environmental organization,
- 8 (3) one member representing the general public, and
- 9 (4) one member representing a commercial or publicly
10 owned laboratory accredited by the Department for
11 both the Drinking Water and the General
12 Environmental Laboratory classifications of
13 accreditation,

14 b. the President Pro Tempore of the Senate shall appoint
15 four members as follows:

- 16 (1) one member representing an industry located in
17 this state,
- 18 (2) one member representing an oil-field-related
19 industry,
- 20 (3) one member representing the field of geology, and
- 21 (4) one member who holds a certificate under the
22 Waterworks and Wastewater Works Operator
23 Certification Act and who is the operator of a
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1 municipal waterworks or wastewater works
2 facility, and

3 c. the Speaker of the House of Representatives shall
4 appoint four members as follows:

5 (1) one member representing a political subdivision
6 of the state who shall be a member of the local
7 governmental body of a city or town,

8 (2) one member representing a rural water district
9 organized pursuant to the laws of this state,

10 (3) one member representing the field of agriculture,
11 and

12 (4) one member who holds a certificate under the
13 Waterworks and Wastewater Works Operator
14 Certification Act and who is the operator of a
15 waterworks or wastewater works for a rural water
16 or sewer district organized pursuant to law.

17 2. The jurisdictional areas of the Water Quality Management
18 Advisory Council shall include Article VI of this chapter, Article
19 IV of this chapter, waterworks and wastewater activities, water
20 quality and protection and related activities and such other areas
21 as designated by the Board.

22 D. 1. All members of the Hazardous Waste Management Advisory
23 Council shall be knowledgeable of hazardous waste and of the
24 environment. The Council shall be composed as follows:

1 a. the Governor shall appoint three members as follows:

2 (1) one member representing an industry located in
3 this state,

4 (2) one member representing a statewide nonprofit
5 environmental organization, and

6 (3) one member representing a political subdivision
7 of the state who shall be a member of the local
8 governing body of a city or town,

9 b. the President Pro Tempore of the Senate shall appoint
10 three members as follows:

11 (1) one member representing a political subdivision
12 of the state who shall be a member of the local
13 governmental body of a city or town,

14 (2) one member representing the general public, and

15 (3) one member representing industry generating
16 hazardous waste, and

17 c. the Speaker of the House of Representatives shall
18 appoint three members as follows:

19 (1) one member representing the field of engineering,

20 (2) one member representing the hazardous waste
21 industry, and

22 (3) one member representing the field of geology.

23 2. The jurisdictional areas of the Hazardous Waste Management

24 Advisory Council shall include Article VII of this chapter, the

1 Oklahoma Hazardous Waste Reduction Program, and such other areas as
2 designated by the Board.

3 E. 1. All members of the Solid Waste Management Advisory
4 Council shall be knowledgeable of solid waste and of the
5 environment. The Council shall be composed as follows:

6 a. the Governor shall appoint four members as follows:

7 (1) one member representing a statewide nonprofit
8 environmental organization,

9 (2) one member shall be a county commissioner,

10 (3) one member representing the general public, and

11 (4) one member representing the solid waste
12 incineration, waste-to-energy industry in this
13 state,

14 b. the President Pro Tempore of the Senate shall appoint
15 three members as follows:

16 (1) one member representing an industry located in
17 this state generating solid waste,

18 (2) one member representing a political subdivision
19 of this state who shall be a member of the local
20 governmental body of a city or town, and

21 (3) one member representing the field of geology, and

22 c. the Speaker of the House of Representatives shall
23 appoint three members as follows:
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- (1) one member representing the solid waste disposal industry in this state,
- (2) one member representing the field of engineering, and
- (3) one member representing the transportation industry.

2. The jurisdictional areas of the Solid Waste Management Advisory Council shall include Article X of this chapter, the Oklahoma Used Tire Recycling Act and such other areas as designated by the Board.

F. 1. All members of the Radiation Management Advisory Council shall be knowledgeable of radiation hazards and radiation protection. The Council shall be composed as follows:

a. the Governor shall appoint three members as follows:

- (1) one member representing an industry located in this state which uses sources of radiation in its manufacturing or processing business,
- (2) one member representing a statewide nonprofit environmental organization, and
- (3) one member representing the engineering profession who shall be a professional engineer employed and experienced in matters of radiation management and protection,

b. the President Pro Tempore of the Senate shall appoint three members as follows:

(1) one member representing the faculty of an institution of higher learning of university status and shall be experienced in matters of scientific knowledge and competent in matters of radiation management and protection,

(2) one member representing the general public, and

(3) one member representing the field of industrial radiography, and

c. the Speaker of the House of Representatives shall appoint three members as follows:

(1) one member representing the transportation industry,

(2) one member representing the petroleum industry who is trained and experienced in radiation management and protection, and

(3) one member representing a medical institution within this state who shall be experienced in matters of radiation management and protection.

2. The jurisdictional areas of the Radiation Management Advisory Council shall include Article IX of this chapter and such other areas as designated by the Board.

1 G. 1. The Air Quality Council shall remain in effect as the
2 Air Quality Advisory Council and carry on the powers and duties
3 assigned to it by law. Future appointments to the Council shall be
4 made according to the provisions of this section.

5 2. The Council shall consist of nine (9) members who shall be
6 residents of this state and appointed by the Governor with the
7 advice and consent of the Senate.

8 3. Members of the Council shall have the qualifications as
9 follows:

- 10 a. one member shall be selected from the engineering
11 profession, and, as such, shall be a professional
12 engineer and experienced in matters of air pollution
13 equipment and control, who shall not be an employee of
14 any unit of government,
- 15 b. one member shall be selected from industry in general,
16 and, as such, shall be employed as a manufacturing
17 executive carrying on a manufacturing business within
18 this state,
- 19 c. one member shall be selected from a faculty of an
20 institution of higher learning of university status
21 and shall be experienced in matters of scientific
22 knowledge and competent in matters of air pollution
23 control and evaluation,
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1 d. one member shall be selected from the transportation
2 industry,

3 e. one member shall be selected from the petroleum
4 industry, and, as such, shall be employed by a
5 petroleum company carrying on a petroleum refining
6 business within the state, and, as such, shall be
7 trained and experienced in matters of scientific
8 knowledge of causes as well as effects of air
9 pollution,

10 f. one member shall be selected from agriculture, and, as
11 such, shall be engaged in or employed by a basic
12 agricultural business or the processing of
13 agricultural products,

14 g. one member shall be selected from the political
15 subdivisions of the state, and, as such, shall be a
16 member of the local government body of a city or town,

17 h. one member, whose first term shall expire on June 15,
18 1998, shall be selected from the general public, and

19 i. one member, whose first term shall expire on June 15,
20 1999, shall be selected from the electric utilities
21 industry, and as such, shall be knowledgeable in
22 matters of air pollution and control.

23 4. Each member shall be appointed to serve a term of office of
24 seven (7) years.

1 The terms of all members shall be deemed to have expired on June
2 15 of the year of expiration, and shall continue until successors
3 have been duly appointed and qualified. If a vacancy occurs, the
4 Governor shall appoint a person for the remaining portion of the
5 unexpired term created by the vacancy. Five members of the Council
6 shall constitute a quorum.

7 5. The Council shall hold at least two regular meetings each
8 calendar year at a place and time to be fixed by the Council. The
9 Council shall select one of its members to serve as chair and
10 another of its members to serve as vice-chair at the first regular
11 meeting in each calendar year to serve as the chair and vice-chair
12 for the ensuing year. Special meetings may be called, and any
13 meeting may be canceled, by the chair, or by three members of the
14 Council by delivery of written notice to each member of the Council.

15 6. The jurisdictional areas of the Air Quality Council shall
16 include Article V of this chapter and such other areas as designated
17 by the Board.

18 H. In addition to other powers and duties assigned to each
19 Council pursuant to this Code, each Council shall, within its
20 jurisdictional area:

21 1. Have authority to recommend to the Board rules on behalf of
22 the Department. The Department shall not have standing to recommend
23 to the Board permanent rules or changes to such rules within the
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1 jurisdiction of a Council which have not previously been submitted
2 to the appropriate Council for action;

3 2. Before recommending any permanent rules to the Board, give
4 public notice, offer opportunity for public comment and conduct a
5 public rulemaking hearing when required by the Administrative
6 Procedures Act;

7 3. Have the authority to make written recommendations to the
8 Board which have been concurred upon by at least a majority of the
9 membership of the Council;

10 4. Have the authority to provide a public forum for the
11 discussion of issues it considers relevant to its area of
12 jurisdiction, and to:

13 a. pass nonbinding resolutions expressing the sense of
14 the Council, and

15 b. make recommendations to the Board or Department
16 concerning the need and the desirability of conducting
17 meetings, workshops and seminars; and

18 5. Cooperate with each other Council, the public, the Board and
19 the Executive Director in order to coordinate the rules within their
20 respective jurisdictional areas and to achieve maximum efficiency
21 and effectiveness in furthering the objectives of the Department.

22 I. The Councils shall not recommend rules for promulgation by
23 the Environmental Quality Board unless all applicable requirements
24 of the Administrative Procedures Act have been followed, including

1 but not limited to notice, rule impact statement and rulemaking
2 hearings.

3 J. Members of the Councils shall serve without compensation but
4 may be reimbursed expenses incurred in the performance of their
5 duties, as provided in the State Travel Reimbursement Act. The
6 Councils are authorized to utilize the conference rooms of the
7 Department of Environmental Quality and obtain administrative
8 assistance from the Department, as required.

9 SECTION 2. This act shall become effective July 1, 2026.

10 SECTION 3. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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15 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES, dated
16 02/25/2026 - DO PASS, As Amended and Coauthored.

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